

Electricity Act 2003 — §126/§135 Jurisprudence Map

Aggregation pass over 22 case-records · combined from provision_index · issue_matrix · citation_graph

22 records

16 provisions

10 issue-nodes

79 authority citations

6 in-corpus edges

🔑 **Backbone finding:** the single most load-bearing authority across the corpus is **Executive Engineer (SOUTHCO) v. Seetaram Rice Mill (2012) 2 SCC 108** — **cited by 6 of 12 records** (5× followed). It is **not yet a record** → it is the #1 Supreme-Court-wave target.

1 · Provision index — every holding grouped by section, oldest – newest, with the statutory version applied

▼ s.49 — 1 holdings (1 ratio) · 1 cases pre-2003					
Case	Yr	as	issue-node	type	holding
HC-013	2002	Tariff Clause 16.9 / s.49 Supply Act pre-2003	natural-justice · 126v135	ratio	Consumption beyond the sanctioned load without the Board's consent amounts to theft or malpractice; the statutory tariff (Clause 16.9) empowers the Board to disconnect supply without notice on detecting unauthorised load.
▼ s.56 — 1 holdings (1 ratio) · 1 cases post-2007					
Case	Yr	as	issue-node	type	holding
HC-003	2014	s.56(2) post-2007	limitation-56	ratio	Electricity dues under a Section 126 assessment become 'first due' for Section 56(2) only when the final assessment is made — not on the date of detection or consumption; the two-year bar runs from the final assessment, so recovery initiated soon after it is within time.
▼ s.72 — 1 holdings (1 ratio) · 1 cases pre-2007					
Case	Yr	as	issue-node	type	holding
HC-021	2005	s.126 / Contract Act s.72 pre-2007	assessment-126	ratio	Money paid pursuant to an illegal assessment under the threat that supply would not be restored until payment is recoverable; allowing the Board to retain it would be unjust enrichment impermissible under the Contract Act.
▼ s.125 — 1 holdings (1 ratio) · 1 cases post-2007					
Case	Yr	as	issue-node	type	holding
HC-018	2017	s.127 / s.125 post-2007	appeal-127	ratio	Section 125 (appeal to the Supreme Court from the Appellate Tribunal, Part XI) and Section 127 (appeal to the appellate authority from a Section 126 assessment, Part XII) are totally different and operate in different contexts; authority on Section 125 limitation does not govern a Section 127 appeal.
▼ s.126 — 58 holdings (54 ratio) · 20 cases post-2007 pre-2007					

Case	Yr	as	issue-node	type	holding
HC-021	2005	s.126 pre-2007	assessment-126	ratio	From the commencement of the Electricity Act, 2003 (10.6.2003), a provisional assessment for unauthorised use must be made strictly in accordance with Section 126; an assessment made under the Board's old Terms & Conditions of Supply (Clause 22(J)) is not in accordance with Section 126 and is bad.
HC-021	2005	s.126(1) pre-2007	assessment-126 · natural-justice	ratio	Section 126(1) requires the assessing officer to provisionally assess 'to the best of his judgment' on his own personal observation of the extent of unauthorised use; this quasi-judicial function cannot be fettered by a superior's guideline/office order — an assessment dictated by such a direction is the direction-giver's judgment, not the officer's, and is illegal.
HC-021	2005	s.126(1) pre-2007	assessment-126	ratio	On the facts, the assessment was not the officer's judgment but the judgment of those who issued the 30.12.2003 guideline, and was therefore not an impartial or legal assessment (evidenced by an absurd quantum ~6 times the consumer's highest average consumption).
HC-021	2005	s.126 / Contract Act s.72 pre-2007	assessment-126	ratio	Money paid pursuant to an illegal assessment under the threat that supply would not be restored until payment is recoverable; allowing the Board to retain it would be unjust enrichment impermissible under the Contract Act.
HC-008	2006	s.126(3) pre-2007	natural-justice	ratio	An assessment for unauthorised use / DAE must be preceded by inspection and a reasonable hearing; the licensee is bound by the principles of natural justice (Section 126(3) read with Reg. 25(viii)).
HC-008	2006	s.126 pre-2007	burden-proof · natural-justice	ratio	A suspicion of unauthorised use / DAE must be corroborated by the consumer's consumption pattern; that corroboration is a precondition to the exercise of assessment jurisdiction, and where consumption exceeds ~75% of the assessed figure no action can be taken. A missing seal or broken glass alone will not do.
HC-008	2006	s.126(3) pre-2007	natural-justice	ratio	The show-cause notice must precisely and unambiguously state the allegations on which action is proposed; a notice that keeps the real basis (here, the consumption-pattern / two-shift-use finding) from the consumer fails the standard of fairness.
HC-006	2008	s.126 post-2007	126v135	explanatory	Section 126 excludes mens rea and fastens civil liability; unauthorised use of electricity is different from theft, which is a criminal offence under Section 135.
HC-020	2011	s.126 / Reg. 8.1 post-2007	assessment-126 · burden-proof	ratio	The assessing officer has no jurisdiction to make a theft assessment unless he first establishes a case of theft against the person (para 8.1(b)(iv)); merely issuing a provisional assessment order does not establish theft.
HC-020	2011	s.126 post-2007	burden-proof	ratio	Theft of electrical energy cannot be made out on mere presumption; it has to be established as required by para 8.1(b)(iv) of the Code.
HC-020	2011	s.126(1) post-2007	assessment-126	ratio	A best-judgment assessment under Section 126 must be arrived at without bias and on a rational basis; the officer cannot take a 'short cut' by recording an evasive conclusion in the provisional assessment without discussing how the inference of unauthorised use/theft was reached.

Case	Yr	as	issue-node	type	holding
HC-020	2011	s.126(3) / Reg. 8.1 post-2007	natural-justice	ratio	The law requires an opportunity of oral hearing to the consumer before final assessment; none was given here (no date was communicated for the consumer to answer the charges in person).
HC-020	2011	s.126 / s.135 post-2007	126v135 · mensrea-135	explanatory	Section 126 assessment may be made even on inspection of records where a person is found in unauthorised use, without attracting Section 135, because Section 135 contemplates a positive act interfering with the recording of electricity supplied.
HC-019	2013	s.126 / s.135 post-2007	126v135 · mensrea-135	ratio	Sections 126 and 135 sit in different Parts (XII vs XIV), cover different fields and prescribe different procedures; theft involves mens rea, which is not necessary for unauthorised use under Section 126.
HC-019	2013	s.126 post-2007	126v135 · provisional-final	ratio	Labelling a theft demand as a 'Section 126 provisional assessment' does not convert a theft proceeding into a Section 126 assessment where, on the date of inspection, it was treated as theft (FIR lodged) and not even as suspected theft.
SC-001	2013	s.126 post-2007	jurisdiction-145-154 · assessment-126	ratio	A final assessment under Section 126 for 'unauthorised use of electricity' is a quasi-judicial decision by a public servant; it is not a 'consumer dispute' under Section 2(1)(e) of the Consumer Protection Act, 1986, and cannot be challenged by a consumer complaint.
SC-001	2013	s.126 post-2007	126v135	explanatory	The same acts of 'unauthorised use of electricity' attract a civil consequence (penal assessment at twice the tariff) under Section 126 and simultaneously constitute offences under Sections 135–140 — the two operate in parallel on the same conduct.
HC-003	2014	s.126 post-2007	126v135 · assessment-126	ratio	'Unauthorised use of electricity' (s.126) is the genus of which the theft acts in s.135(1) are species; theft is unauthorised use done dishonestly. A Section 126 assessment therefore has to follow in every case of unauthorised use, including theft — neither section excludes the other.
HC-003	2014	s.126(3) post-2007	natural-justice · provisional-final	ratio	A final assessment must be passed within thirty days of the provisional order under Section 126(3); a final order passed about two years later, without a fresh opportunity of hearing, violates natural justice and cannot be sustained.
HC-009	2016	s.126 / s.135 post-2007	126v135	ratio	Sections 126 and 135 operate in different fields: Section 126 is invoked for over-consumption / unauthorised use of electricity, whereas Section 135 is invoked for theft of electricity.
HC-009	2016	s.126 / s.154(5) post-2007	126v135 · jurisdiction-145-154	ratio	Section 126 cannot be applied to assess the amount to be charged for theft of electricity; the civil liability for theft is measured under the Section 154(5) formula (twice the tariff for the twelve months preceding detection, or the exact period of theft if determined, whichever is less), subject to final adjudication by the Special Court.
HC-010	2017	s.126(1) post-2007	assessment-126 · natural-justice	ratio	The physical presence of the assessing officer at the time of inspection and detection of unauthorised use is not a mandatory precondition for initiating assessment proceedings under Section 126(1).

Case	Yr	as	issue-node	type	holding
HC-010	2017	s.126 post-2007	assessment-126 · mensrea-135	ratio	'Unauthorised use of electricity' under Section 126 covers cases of unauthorised use even without intention; the consumer's intention is not the foundation for an assessment order under Section 126 (mens rea is a Section 135 concept).
HC-010	2017	s.126(6) post-2007	assessment-126	ratio	A consumer who consumes electricity in excess of the sanctioned/connected load (breach of the agreement, Regulations and the Act) is liable to pay at the rate equal to twice the tariff applicable for the relevant category of services.
HC-010	2017	s.126(6) post-2007	assessment-126	ratio	The word 'tariff' in Section 126(6) includes BOTH fixed charges and energy charges; the assessment is at twice that tariff for the relevant category of services under sub-section (5).
HC-010	2017	s.126(6) post-2007	assessment-126	ratio	Where electricity of one category is unauthorisedly used for a higher-tariff purpose, the assessment is twice the tariff applicable to that higher-tariff category for which it was used — not twice the tariff of the category to which the consumer nominally belongs.
HC-010	2017	s.126(6) post-2007	assessment-126	ratio	MARQUEE EXCEPTION: where the consumer is only blamed with overdrawal in excess of sanctioned/connected load in the same premises and for the same purpose (no change in the tariff category), and the excess consumption has already been metered and paid, the assessment under Section 126(6) can only be twice the FIXED charges — the consumer cannot be saddled with twice the energy charges — unless regularising the additional load necessitates upgradation of the distribution system or enhancement of the voltage level.
HC-011	2017	s.126(1) post-2007	assessment-126 · natural-justice	ratio	The condition precedent to a provisional assessment under Section 126(1) is a conclusion by the Assessing Officer that the person is indulging in unauthorised use; that satisfaction cannot rest on the officer's mere 'vagaries' without a fair opportunity of hearing in defence.
HC-011	2017	s.126 / s.135 post-2007	natural-justice	ratio	Principles of natural justice apply to proceedings for unauthorised use of electricity (which may in some cases also amount to an investigation under Section 135) unless excluded by the Act expressly or by necessary implication.
HC-011	2017	s.126(3) post-2007	natural-justice · provisional-final	ratio	A final assessment made without considering the consumer's objections and without a personal hearing (as required by Section 126(3) and Clause 8.1(b)(iii) of the 2005 Code) is dehors the statutory provision and cannot stand.
HC-011	2017	s.126 post-2007	provisional-final	ratio	Absent a lawful final assessment made after considering objections and hearing, the consumer cannot be compelled to deposit the provisional amount.
HC-018	2017	s.126(1) post-2007	natural-justice · assessment-126	ratio	An inspection alleging unauthorised use under Section 126 should be conducted in the presence of the consumer (a signatory to the inspection report); the licensee's failure to show the night inspection was in the consumer's presence undermined its case.
HC-018	2017	s.126(5) post-2007	assessment-126	ratio	The Section 126(5) 12-month cap applies only where the period of unauthorised use is not ascertainable; where the period is ascertained (as here, and reduced by the Appellate Authority),

Case	Yr	as	issue-node	type	holding
					the assessment is confined to that ascertained period.
HC-026	2018	s.126 / s.135 post-2007	126v135 · mensrea-135	explanatory	Section 135 theft falls within criminal jurisprudence and mens rea is the relevant factor; Section 126 (read with the Supply Code) does not speak of criminal intent, and the assessment under it is appealable under Section 127, whereas a Section 135 assessment (Reg. 23-AA) has no statutory appeal.
HC-023	2018	s.126 / s.135 post-2007	126v135 · mensrea-135	ratio	A Section 135 criminal proceeding has no bearing on a Section 126 proceeding; even an acquittal in the criminal case for a Section 135 offence does not exonerate the consumer from Section 126 civil liability.
HC-023	2018	s.126 post-2007	126v135	ratio	Seetaram Rice Mill lays down no ratio that a Section 126 assessment cannot be undertaken in theft cases; Section 126 covers cases over and above Section 135, and the two must be read harmoniously to make both effective.
HC-027	2019	s.126 / s.135 post-2007	126v135 · mensrea-135	ratio	Unauthorised use of electricity (Explanation (b) to Section 126) is the genus of which the Section 135(1) acts are species; theft is unauthorised use done dishonestly, so a Section 126 assessment must follow whenever there is unauthorised use.
HC-027	2019	s.126 / s.135 post-2007	126v135	ratio	Neither Section 126 nor Section 135 excludes a Section 126 assessment where the unauthorised use amounts to theft; the sixth proviso to Section 135(1) itself speaks of the 'assessed amount', i.e. the amount assessed under Section 126.
HC-027	2019	s.126 post-2007	126v135 · appeal-127	ratio	A Section 126 assessment is to be made even where an offence under Section 135 has been made out (FIR/final report notwithstanding); the Special Court finally determines the civil liability, with further action under Section 154(6).
HC-014	2020	s.126 Explanation (b)(iv) post-2007	assessment-126	ratio	Consumption in excess of the sanctioned contract demand, causing a change of tariff category (LT to HT), is 'unauthorised use of electricity' squarely covered by Explanation (b)(iv) to Section 126; the consumers' cases stood clearly covered under Section 126.
HC-014	2020	s.126 post-2007	assessment-126 · mensrea-135	ratio	Following Seetaram Rice Mill (para 35), intention is not the foundation for invoking Section 126; all that need be ascertained is whether the consumer exceeded the contract load resulting in usage beyond it.
HC-014	2020	s.126 post-2007	assessment-126	ratio	Even where penalty @150% has already been levied for exceeding the contract demand under the Regulatory Commission's tariff order, the consumer remains liable to pay charges for unauthorised use of electricity under Section 126.
HC-028	2020	s.126 / s.135 post-2007	126v135 · appeal-127	ratio	Even where an FIR is lodged under Section 135, the assessment is carried out under Section 126 (with the Section 127 appeal remedy), and the Special Court finally determines the civil liability under Section 154(6).
HC-017	2022	s.126 / s.135 post-2007	126v135	ratio	Unauthorised use of electricity (Section 126) is the genus and theft (Section 135) is one of the species thereunder; the two operate in different fields.
HC-017	2022	s.126 post-2007	126v135 · burden-proof	ratio	A Section 126 assessment is a civil enquiry to be decided on the standard of preponderance of probability, whereas Section 135 theft requires

Case	Yr	as	issue-node	type	holding
					proof beyond reasonable doubt with mens rea; the yardsticks are distinct.
HC-017	2022	s.126 / s.135 post-2007	126v135 · mensrea-135	ratio	An acquittal on a Section 135 theft charge (tested on proof beyond reasonable doubt) does not ipso facto exonerate the consumer from civil liability under Section 126 (tested on the more liberal preponderance of probability).
HC-022	2022	s.126 / s.135 post-2007	126v135 · burden-proof	ratio	Sections 126 and 135 operate in separate fields and parallel proceedings may run; Section 126 is civil (preponderance of probability), Section 135 is criminal (beyond reasonable doubt) — the standards of proof differ.
HC-022	2022	s.126 / s.135 post-2007	126v135 · mensrea-135 · burden-proof	ratio	Where a tampered/bypassed meter is the ONLY allegation and it finds both the Section 135 prosecution and the Section 126 assessment (self-same allegation), an acquittal scot-free in the criminal case means the consumer cannot be indicted for the same charge even on a preponderance of probability.
HC-022	2022	s.126(3) post-2007	provisional-final · natural-justice	ratio	It is the incumbent duty of the licensee to pass a final order of assessment within 30 days of service of the provisional assessment, even if the consumer files no objection.
HC-022	2022	s.126(3) post-2007	provisional-final	ratio	If no final order is drawn up, the provisional assessment order spends its force after 30 days from its service on the consumer.
HC-024	2022	s.126 / s.135 post-2007	126v135 · mensrea-135	ratio	The contention that an acquittal in the Section 135 criminal case extinguishes Section 126 liability is not acceptable — a Section 135 proceeding has no bearing on a Section 126 proceeding (following Orion Metal and Seetaram Rice Mill).
HC-024	2022	s.126(2) post-2007	natural-justice · provisional-final · assessment-126	ratio	The provisional assessment must be supplied to the consumer under Section 126(2); in the absence of such service there should be no demand, because a statutory power must be exercised only in the manner prescribed and not otherwise.
HC-024	2022	s.126 post-2007	assessment-126 · natural-justice	ratio	A decision under Section 126 must be taken strictly in accordance with the statutory provision — when a statute provides that a thing be done in a particular manner, it must be done in that manner and not in any other.
HC-024	2022	s.126(3) post-2007	provisional-final · natural-justice	ratio	A demand issued without considering the consumer's objection and without making a final assessment requires interference and must be remitted for a fresh decision strictly per Section 126.
HC-025	2023	s.126 / s.135 post-2007	126v135	ratio	The vires of Sections 126 and 135 is upheld; the overlap on tampering creates no double standards — where both theft and unauthorised-use ingredients are satisfied, the authorities may make a Section 126 assessment AND proceed with a Section 135 criminal trial before the Special Court.
HC-025	2023	s.126(1) post-2007	natural-justice · provisional-final	ratio	No hearing is required before a provisional assessment under Section 126(1) (which is not conclusive); the right of hearing and to file objections is given before the final order, and requiring a hearing before the provisional assessment would defeat the summary, expeditious timeline.

Case	Yr	as	issue-node	type	holding
HC-025	2023	s.126 post-2007	assessment-126	ratio	The assessing officer is a State Government appointee (whether of the Government or the licensee) and so has an independent character, not functioning merely as an employee of the licensee — hence no unbridled power and no basis to strike down the Section.
HC-025	2023	s.126 / s.135 post-2007	126v135 · mensrea-135	ratio	A Section 126 finding does not indict a person of theft (a criminal charge); the assessing officer merely calculates the licensee's loss, and whether theft is established is left to the Special Court's full criminal trial — so no violation of Articles 19/21.

▼ **s.127** — 14 holdings (14 ratio) · 11 cases post-2007

Case	Yr	as	issue-node	type	holding
HC-019	2013	s.127 post-2007	appeal-127 · jurisdiction-145-154	ratio	The Section 127 appeal lies only against a Section 126 order, not against a Section 135(1A)/Clause 15.8 theft assessment; the latter is examinable by the Special Court under Section 154(5)/(6).
SC-001	2013	s.127 post-2007	appeal-127	ratio	The remedy against a final Section 126 order is an appeal to the appellate authority under Section 127, entertained only on deposit of half the assessed amount; the appellate order is final.
HC-003	2014	s.127 post-2007	appeal-127	ratio	A Section 126 final assessment in a theft case is appealable under Section 127 (following Paliwal Alloys); a writ was nonetheless entertained here because jurisdiction was challenged and the order breached natural justice.
HC-018	2017	s.127 post-2007	appeal-127	ratio	A Section 127 appeal is not barred by limitation where the delay is attributable to the consumer's bona fide pursuit of a writ petition and writ appeal in the wrong forum; Section 14 of the Limitation Act applies to exclude that period (the Electricity Act being a special law under Section 29(2) that does not expressly exclude Section 14).
HC-018	2017	s.127 / s.125 post-2007	appeal-127	ratio	Section 125 (appeal to the Supreme Court from the Appellate Tribunal, Part XI) and Section 127 (appeal to the appellate authority from a Section 126 assessment, Part XII) are totally different and operate in different contexts; authority on Section 125 limitation does not govern a Section 127 appeal.
HC-026	2018	s.127 post-2007	appeal-127 · natural-justice	ratio	An appellate order rejecting a Section 127 appeal as not maintainable, passed without affording any opportunity of hearing, warrants interference and is quashed and remitted.
HC-023	2018	s.127 post-2007	appeal-127 · provisional-final	ratio	Where no Section 127 appeal is filed against the final Section 126 assessment, it attains finality and the consumer is liable to pay the assessed amount.
HC-014	2020	s.127 post-2007	appeal-127 · assessment-126	ratio	Where the High Court has remanded a Section 127 appeal confined to quantum, the Appellate Authority cannot re-open the settled question whether Section 126 applies; the only question open to it is the quantum of assessment in the final bills.
HC-028	2020	s.127 post-2007	appeal-127	ratio	An order of assessment under Section 126 is appealable under Section 127 to the Commissioner of the Division (the notified appellate authority under the 14.7.2006 notification); the Commissioner was not justified in dismissing the appeal for want of jurisdiction.
HC-028	2020	s.127 post-2007	appeal-127	ratio	The State's 14.7.2006 notification confers on the Commissioner of the Division the power to hear and decide appeals under Section 127.

Case	Yr	as	issue-node	type	holding
HC-017	2022	s.127 post-2007	appeal-127 · provisional-final	ratio	A consumer who bypasses the Section 127 appeal (which requires a 50% pre-deposit) cannot obtain from the writ court, indirectly, the restoration he could not get from the appellate forum; there is no unqualified restoration without complying with the final assessment.
HC-022	2022	s.127 post-2007	appeal-127 · provisional-final	ratio	No Section 127 appeal lay because no final order of assessment was ever made; hence the writ under Article 226 is maintainable.
HC-025	2023	s.127(2) post-2007	appeal-127	ratio	The 50% mandatory pre-deposit under Section 127(2) is not exorbitant and is in consonance with the objects of the Act; a writ court will not sit in judgment under Article 226 over the propriety of the pre-deposit quantum.
HC-025	2023	s.127 post-2007	appeal-127	ratio	The petitioners had long overshot the Section 127 limitation and taken direct writ recourse, with nothing in the assessments reeking of palpable arbitrariness or patent perversity — so no interference under Article 226 even on merits.

▼ **s.135** — 23 holdings (18 ratio) · 15 cases post-2007 pre-2007

Case	Yr	as	issue-node	type	holding
HC-021	2005	s.135 pre-2007	126v135	explanatory	Even if hooking was found, the Board could de-hook, realise the value of unauthorised consumption at the penal rate, or proceed under Section 135 — but that did not authorise the disconnection effected or an illegal assessment.
HC-020	2011	s.126 / s.135 post-2007	126v135 · mensrea-135	explanatory	Section 126 assessment may be made even on inspection of records where a person is found in unauthorised use, without attracting Section 135, because Section 135 contemplates a positive act interfering with the recording of electricity supplied.
HC-019	2013	s.126 / s.135 post-2007	126v135 · mensrea-135	ratio	Sections 126 and 135 sit in different Parts (XII vs XIV), cover different fields and prescribe different procedures; theft involves mens rea, which is not necessary for unauthorised use under Section 126.
HC-019	2013	s.135 / Reg. 15.8 post-2007	burden-proof · natural-justice	ratio	A missing/tampered seal or broken glass window is not, by itself, evidence of theft unless corroborated by the consumer's consumption pattern and other available evidence — this is the safeguard for suspected-theft cases (Clause 15.8(x)-(xv)).
SC-001	2013	s.135 post-2007	mensrea-135 · jurisdiction-145-154	ratio	Offences under Sections 135–140 (theft and allied acts) are triable only by a Special Court constituted under Section 153; a Consumer Forum has no jurisdiction over any action taken under Sections 135–140.
HC-003	2014	s.135(1) 6th proviso post-2007	126v135	explanatory	The 'assessed amount' in the sixth proviso to Section 135(1) (on payment of which supply is restored) is the amount assessed under Section 126 — textual confirmation that assessment is contemplated in theft cases.
HC-009	2016	s.126 / s.135 post-2007	126v135	ratio	Sections 126 and 135 operate in different fields: Section 126 is invoked for over-consumption / unauthorised use of electricity, whereas Section 135 is invoked for theft of electricity.
HC-009	2016	s.135 post-2007	natural-justice · mensrea-135	ratio	A show-cause notice / opportunity of hearing is required only where theft is suspected (broken/tampered seals, no evidence at site — per Circular 54/2007); where the theft is 'writ large' (here a dead-stop meter with a soldered wire after

Case	Yr	as	issue-node	type	holding
					breaking the counter lock), no opportunity of hearing need be given before proceeding.
HC-011	2017	s.126 / s.135 post-2007	natural-justice	ratio	Principles of natural justice apply to proceedings for unauthorised use of electricity (which may in some cases also amount to an investigation under Section 135) unless excluded by the Act expressly or by necessary implication.
HC-026	2018	s.152 / s.135 post-2007	compounding-152 · appeal-127	ratio	Even a consumer who has compounded and paid the compounding fee should be permitted to test the correctness of the manner of computation of the civil liability fastened on him; there is a casus omissus (no forum to test the final Section 135 assessment).
HC-026	2018	s.126 / s.135 post-2007	126v135 · mensrea-135	explanatory	Section 135 theft falls within criminal jurisprudence and mens rea is the relevant factor; Section 126 (read with the Supply Code) does not speak of criminal intent, and the assessment under it is appealable under Section 127, whereas a Section 135 assessment (Reg. 23-AA) has no statutory appeal.
HC-023	2018	s.126 / s.135 post-2007	126v135 · mensrea-135	ratio	A Section 135 criminal proceeding has no bearing on a Section 126 proceeding; even an acquittal in the criminal case for a Section 135 offence does not exonerate the consumer from Section 126 civil liability.
HC-023	2018	s.135 post-2007	mensrea-135	explanatory	On the facts, the acquittal was not a clean acquittal but a benefit-of-doubt acquittal on technicality (delayed seizure, non-production of dump copy), reinforcing that it does not undo the Section 126 civil liability.
HC-027	2019	s.126 / s.135 post-2007	126v135 · mensrea-135	ratio	Unauthorised use of electricity (Explanation (b) to Section 126) is the genus of which the Section 135(1) acts are species; theft is unauthorised use done dishonestly, so a Section 126 assessment must follow whenever there is unauthorised use.
HC-027	2019	s.126 / s.135 post-2007	126v135	ratio	Neither Section 126 nor Section 135 excludes a Section 126 assessment where the unauthorised use amounts to theft; the sixth proviso to Section 135(1) itself speaks of the 'assessed amount', i.e. the amount assessed under Section 126.
HC-028	2020	s.126 / s.135 post-2007	126v135 · appeal-127	ratio	Even where an FIR is lodged under Section 135, the assessment is carried out under Section 126 (with the Section 127 appeal remedy), and the Special Court finally determines the civil liability under Section 154(6).
HC-017	2022	s.126 / s.135 post-2007	126v135	ratio	Unauthorised use of electricity (Section 126) is the genus and theft (Section 135) is one of the species thereunder; the two operate in different fields.
HC-017	2022	s.126 / s.135 post-2007	126v135 · mensrea-135	ratio	An acquittal on a Section 135 theft charge (tested on proof beyond reasonable doubt) does not ipso facto exonerate the consumer from civil liability under Section 126 (tested on the more liberal preponderance of probability).
HC-022	2022	s.126 / s.135 post-2007	126v135 · burden-proof	ratio	Sections 126 and 135 operate in separate fields and parallel proceedings may run; Section 126 is civil (preponderance of probability), Section 135 is criminal (beyond reasonable doubt) — the standards of proof differ.
HC-022	2022	s.126 / s.135 post-2007	126v135 · mensrea-135 · burden-proof	ratio	Where a tampered/bypassed meter is the ONLY allegation and it founds both the Section 135 prosecution and the Section 126 assessment (self-same allegation), an acquittal scot-free in the

Case	Yr	as	issue-node	type	holding
					criminal case means the consumer cannot be indicted for the same charge even on a preponderance of probability.
HC-024	2022	s.126 / s.135 post-2007	126v135 · mensrea-135	ratio	The contention that an acquittal in the Section 135 criminal case extinguishes Section 126 liability is not acceptable — a Section 135 proceeding has no bearing on a Section 126 proceeding (following Orion Metal and Seetaram Rice Mill).
HC-025	2023	s.126 / s.135 post-2007	126v135	ratio	The vires of Sections 126 and 135 is upheld; the overlap on tampering creates no double standards — where both theft and unauthorised-use ingredients are satisfied, the authorities may make a Section 126 assessment AND proceed with a Section 135 criminal trial before the Special Court.
HC-025	2023	s.126 / s.135 post-2007	126v135 · mensrea-135	ratio	A Section 126 finding does not indict a person of theft (a criminal charge); the assessing officer merely calculates the licensee's loss, and whether theft is established is left to the Special Court's full criminal trial — so no violation of Articles 19/21.

▼ s.138 — 1 holdings (1 ratio) · 1 cases post-2007

Case	Yr	as	issue-node	type	holding
HC-020	2011	s.138(d) post-2007	assessment-126	ratio	For a contravention of Section 138(d), an assessment under Section 126 (or para 8.1 of the Code) is not permissible.

▼ s.145 — 7 holdings (7 ratio) · 4 cases post-2007

Case	Yr	as	issue-node	type	holding
HC-006	2008	s.145 post-2007	jurisdiction-145-154	ratio	Section 145's express bar on civil-court jurisdiction operates only in respect of Section 126 (assessment) and Section 127 (appeal) matters — not theft under Section 135.
HC-006	2008	s.145 post-2007	jurisdiction-145-154	ratio	The Electricity Act is a complete code; the civil court's jurisdiction is by necessary implication barred, and a consumer cannot approach a civil court without exhausting the alternative remedies the Act provides.
SC-001	2013	s.145 post-2007	jurisdiction-145-154	ratio	Section 145 bars civil courts over any matter an assessing officer (Section 126) or appellate authority (Section 127) may determine; read with Sections 173–174, the phrase 'other authority' does not include the Consumer Fora, which are therefore also ousted.
HC-016	2013	s.145 post-2007	jurisdiction-145-154	ratio	The question whether the civil court's jurisdiction is barred by Section 145 (matters an assessing officer under Section 126 or appellate authority under Section 127 may determine) goes to the root of the matter and must be decided before a civil court adjudicates an unauthorised-abstraction suit.
HC-016	2013	s.145 post-2007	jurisdiction-145-154	ratio	The Section 145 bar can be agitated by the respondent-defendant (licensee) in the first appeal even without filing a cross-appeal or cross-objection against the trial court's finding on jurisdiction.
HC-016	2013	s.145 post-2007	jurisdiction-145-154	ratio	Section 145 effects an absolute exclusion of the civil court's jurisdiction over unlawful-abstraction assessment matters; the appeal is remanded for that question to be decided.
HC-017	2022	s.145 post-2007	jurisdiction-145-154	ratio	Section 145 bars civil-court interference in respect of assessments under Sections 126 and 127; a Section 135 FIR instead leads to a Section 154 Special Court criminal action, with civil liability under Section 154(5) independent of and subject to the Section 126 deposit (Section 154(6)).

▼ **s.152** — 4 holdings (4 ratio) · 2 cases post-2007

Case	Yr	as	issue-node	type	holding
HC-009	2016	s.152 post-2007	compounding-152	ratio	The remedy of compounding under Section 152 is available in both cases — established theft and suspected theft; accepting the compounding notice avoids trial before the Special Court, refusing it exposes the consumer to punishment and fine by that Court.
HC-026	2018	s.152 post-2007	compounding-152	ratio	Compounding of an offence under Section 152 cannot be done 'under protest' — it is not recognised in law; if the consumer protests, the authorised officer must instead launch prosecution.
HC-026	2018	s.152 post-2007	compounding-152	ratio	Once the consumer exercises the option to compound (an admission of guilt deemed an acquittal), there is no retracting it and he cannot canvass the correctness of the finding of guilt or claim he was compelled to compound under protest.
HC-026	2018	s.152 / s.135 post-2007	compounding-152 · appeal-127	ratio	Even a consumer who has compounded and paid the compounding fee should be permitted to test the correctness of the manner of computation of the civil liability fastened on him; there is a casus omissus (no forum to test the final Section 135 assessment).

▼ **s.153** — 1 holdings (1 ratio) · 1 cases post-2007

Case	Yr	as	issue-node	type	holding
HC-006	2008	s.153/s.154 post-2007	jurisdiction-145-154	ratio	Any dispute about civil liability in theft cases is impliedly excluded from the jurisdiction of the civil court by Sections 153 and 154, under which the Special Court determines such liability (acting as both civil and criminal court).

▼ **s.154** — 8 holdings (8 ratio) · 7 cases post-2007

Case	Yr	as	issue-node	type	holding
HC-006	2008	s.154(5) post-2007	jurisdiction-145-154	ratio	Section 154(5) invests the Special Court with jurisdiction to determine the quantum of civil liability in theft cases; a consumer disputing a theft bill must challenge it before the Special Court, even where no criminal complaint has been filed.
HC-006	2008	s.153/s.154 post-2007	jurisdiction-145-154	ratio	Any dispute about civil liability in theft cases is impliedly excluded from the jurisdiction of the civil court by Sections 153 and 154, under which the Special Court determines such liability (acting as both civil and criminal court).
HC-019	2013	s.154(5)/(6) post-2007	jurisdiction-145-154	ratio	The remedy against a final theft assessment is before the Special Court under Section 154(5)/(6), which determines the civil liability; the writ court will not interfere.
HC-003	2014	s.154(5),(6) post-2007	126v135 · jurisdiction-145-154	ratio	The Special Court's power under Section 154(5) to determine civil liability for theft does not preclude a Section 126 assessment; the amount 'deposited' referred to in Section 154(6) is the amount assessed under Section 126, there being no other provision for such a deposit.
HC-009	2016	s.126 / s.154(5) post-2007	126v135 · jurisdiction-145-154	ratio	Section 126 cannot be applied to assess the amount to be charged for theft of electricity; the civil liability for theft is measured under the Section 154(5) formula (twice the tariff for the twelve months preceding detection, or the exact period of theft if determined, whichever is less), subject to final adjudication by the Special Court.

Case	Yr	as	issue-node	type	holding
HC-023	2018	s.154(6) post-2007	jurisdiction-145-154	ratio	The amount 'deposited by the consumer' in Section 154(6) is the amount deposited under Section 126 (there being no other deposit provision for theft), so the Section 154(5) Special Court does not oust the Section 126 assessment; the argument that only the Special Court may assess is rejected.
HC-027	2019	s.154(6) post-2007	jurisdiction-145-154	ratio	The 'amount deposited by the consumer' in Section 154(6) is the amount deposited under Section 126 — there being no other deposit provision for theft — so Section 126 assessment and the Special Court's Section 154(5) determination coexist.
HC-022	2022	s.154(6) post-2007	jurisdiction-145-154	ratio	The Explanation to Section 154(6) ('civil liability') refers to the liability determined by the Special Court under Section 154(5) for theft, not to the amount raised as a provisional assessment under Section 126.

▼ **s.173** — 1 holdings (1 ratio) · 1 cases post-2007

Case	Yr	as	issue-node	type	holding
SC-001	2013	s.173/174/175 post-2007	jurisdiction-145-154	ratio	Although Sections 173–175 and Section 3 CPA save consumer rights and give the CPA primacy on true inconsistency, they do not vest a Consumer Forum with power to adjudicate a Section 126 assessment or a Sections 135–140 offence, because such acts are neither a 'complaint' (s.2(1)(c)) nor a 'deficiency in service' (s.2(1)(o),(g)) under the CPA.

▼ **Reg. 15.8** — 1 holdings (1 ratio) · 1 cases post-2007

Case	Yr	as	issue-node	type	holding
HC-019	2013	Reg. 15.8 post-2007	126v135 · provisional-final	ratio	The suspected-theft safeguards in Clause 15.8(x)-(xv) (continued supply, provisional assessment, show-cause, 75%-consumption drop) have no application to a clear theft case, which is governed by Clause 15.8(i)-(ix).

▼ **Reg. 8.1 (UP Code)** — 1 holdings (1 ratio) · 1 cases post-2007

Case	Yr	as	issue-node	type	holding
HC-027	2019	Reg. 8.1 (UP Code) post-2007	126v135 · provisional-final	ratio	The U.P. Electricity Supply Code, 2005 (Clause 8.1) requires a provisional assessment bill and final assessment even in Section 135 theft cases, confirming that assessment for theft is made under Section 126.

▼ **Tariff Clause 16.9** — 2 holdings (2 ratio) · 1 cases pre-2003

Case	Yr	as	issue-node	type	holding
HC-013	2002	Tariff Clause 16.9 pre-2003	natural-justice	ratio	Where urgent action is needed to protect the Board's property and prevent ongoing pilferage, the audi alteram partem rule is dispensed with; disconnection without notice is valid and not violative of natural justice or Article 14.
HC-013	2002	Tariff Clause 16.9 pre-2003	natural-justice · provisional-final	ratio	Although natural justice is excluded at the disconnection stage, the determination of the value of energy consumed and the assessment of compensation must be made after giving the affected person an opportunity of hearing — that requirement is read into the clause even though it is silent.

line of authority: **HC-013** HC·2002 → **HC-021** HC·2005 → **HC-006** HC·2008 → **HC-020** HC·2011 → **HC-019** HC·2013 → **SC-001** SC·2013 → **HC-003** HC·2014 → **HC-009** HC·2016 → **HC-026** HC·2018 → **HC-023** HC·2018 → **HC-027** HC·2019 → **HC-028** HC·2020 → **HC-017** HC·2022 → **HC-022** HC·2022 → **HC-024** HC·2022 → **HC-025** HC·2023

HC-013 holding · Tariff Clause 16.9 / s.49 Supply Act · ratio

Consumption beyond the sanctioned load without the Board's consent amounts to theft or malpractice; the statutory tariff (Clause 16.9) empowers the Board to disconnect supply without notice on detecting unauthorised load.

HC-021 holding · s.135 · explanatory

Even if hooking was found, the Board could de-hook, realise the value of unauthorised consumption at the penal rate, or proceed under Section 135 — but that did not authorise the disconnection effected or an illegal assessment.

HC-006 HC-DB-binding (Delhi) · affirms

Section 126 (unauthorised use — civil, no mens rea) and Section 135 (theft — criminal, dishonesty) operate in different fields.

HC-020 holding · s.126 / s.135 · explanatory

Section 126 assessment may be made even on inspection of records where a person is found in unauthorised use, without attracting Section 135, because Section 135 contemplates a positive act interfering with the recording of electricity supplied.

HC-019 HC-DB (Jharkhand) · settles-explains

Where a case is treated as theft (FIR lodged, not suspected theft or mere unauthorised use), the Section 126 / Clause 15.7 provisional-assessment machinery and the suspected-theft safeguards of Clause 15.8(x)-(xv) do not apply; the procedure is Section 135(1A)/Clause 15.8(i)-(ix), and mislabelling the theft bill as a Section 126 assessment does not convert the proceeding.

SC-001 SC-binding · explains

Section 126 (civil assessment) and Sections 135–140 (criminal offences) apply in parallel to the same act of unauthorised use; a Section 126 assessment is a civil/quasi-judicial consequence, not a criminal adjudication.

HC-003 HC-DB-binding (Allahabad) · affirms-extends

An assessment under Section 126 must be made even where a Section 135 theft offence has been booked and is pending before the Special Court; the Special Court's civil-liability determination under Section 154(5) does not oust the assessing officer's Section 126 power. The two tracks (civil assessment + criminal trial) run in parallel.

HC-009 HC-SB (Punjab & Haryana) · applies

Sections 126 and 135 operate in different and distinct fields; theft under Section 135 cannot be assessed under Section 126, and its civil liability is measured under the Section 154(5) formula, subject to final adjudication by the Special Court.

HC-026 holding · s.126 / s.135 · explanatory

Section 135 theft falls within criminal jurisprudence and mens rea is the relevant factor; Section 126 (read with the Supply Code) does not speak of criminal intent, and the assessment under it is appealable under Section 127, whereas a Section 135 assessment (Reg. 23-AA) has no statutory appeal.

HC-023 HC-SB (Orissa) · settles

A Section 126 assessment may be made even in theft cases and is unaffected by the outcome of the Section 135 prosecution — an acquittal (a fortiori a benefit-of-doubt acquittal) does not exonerate the civil liability under Section 126; Section 154(5) does not oust Section 126, and an un-appealed final assessment attains finality.

HC-027 HC-DB (Allahabad) · affirms

Because unauthorised use (Section 126) is the genus and theft (Section 135) a species, a Section 126 assessment must be made even in theft cases (with a Section 127 appeal); an FIR/final report under Section 135 does not bar it, and the Special Court finally determines civil liability under Section 154(6).

HC-028 holding · s.126 / s.135 · ratio

Even where an FIR is lodged under Section 135, the assessment is carried out under Section 126 (with the Section 127 appeal remedy), and the Special Court finally determines the civil liability under Section 154(6).

HC-017 HC-SB (Calcutta) settles

Because unauthorised use (Section 126, civil, preponderance of probability) is the genus and theft (Section 135, criminal, proof beyond reasonable doubt + mens rea) only a species, an acquittal on a theft charge does not ipso facto extinguish civil liability under Section 126; the two channels operate on separate footings.

HC-022 HC-SB (Calcutta) extends

Although Sections 126 and 135 run in parallel with different proof standards, where the Section 126 assessment rests solely on the self-same allegation (tampered/bypassed meter) as the Section 135 prosecution, an honourable acquittal exonerates the consumer under Section 126 too, because the same charge cannot survive on preponderance of probability once it has failed beyond reasonable doubt.

HC-024 HC-DB (Jharkhand) affirms

An acquittal in the Section 135 criminal case does not exonerate Section 126 civil liability (the two proceedings have no bearing on each other).

HC-025 HC-SB (Calcutta) affirms

Sections 126 and 135 are constitutionally valid: their overlap on tampering permits parallel Section 126 assessment and Section 135 Special-Court trial without double standards; no hearing is due before a non-conclusive provisional assessment; the assessing officer is an independent State appointee; and the Section 127(2) 50% pre-deposit is valid and beyond Article 226 interference.

▼ appeal-127 — 13 cases · lead **SC-001** (SC)

line of authority: **HC-020** HC·2011 → **HC-019** HC·2013 → **SC-001** SC·2013 → **HC-003** HC·2014 → **HC-018** HC·2017 → **HC-026** HC·2018 → **HC-023** HC·2018 → **HC-027** HC·2019 → **HC-014** HC·2020 → **HC-028** HC·2020 → **HC-017** HC·2022 → **HC-022** HC·2022 → **HC-025** HC·2023

HC-020 HC-SB (Allahabad) affirms

The Section 127 appellate authority must apply its own mind, read the relevant provisions and pass a reasoned, speaking order; a shallow, non-speaking affirmance cannot stand.

HC-019 HC-DB (Jharkhand) settles

A Section 127 appeal lies only against a Section 126 order; a Section 135(1A)/theft assessment is not appealable under Section 127 and is examinable only by the Special Court under Section 154(5)/(6).

SC-001 holding · s.127 · ratio

The remedy against a final Section 126 order is an appeal to the appellate authority under Section 127, entertained only on deposit of half the assessed amount; the appellate order is final.

HC-003 holding · s.127 · ratio

A Section 126 final assessment in a theft case is appealable under Section 127 (following Paliwal Alloys); a writ was nonetheless entertained here because jurisdiction was challenged and the order breached natural justice.

HC-018 HC-SB (Orissa) settles

The limitation for a Section 127 appeal against a Section 126 assessment is subject to Section 14 of the Limitation Act (Electricity Act being a special law under Section 29(2)): time spent bona fide pursuing a writ remedy in the wrong forum is excluded, so the appeal is not time-barred; Section 125 (SC appeal from the Appellate Tribunal) is distinct and its limitation authority does not apply.

HC-026 holding · s.152 / s.135 · ratio

Even a consumer who has compounded and paid the compounding fee should be permitted to test the correctness of the manner of computation of the civil liability fastened on him; there is a casus omissus (no forum to test the final Section 135 assessment).

HC-026 holding · s.127 · ratio

An appellate order rejecting a Section 127 appeal as not maintainable, passed without affording any opportunity of hearing, warrants interference and is quashed and remitted.

HC-023 holding · s.127 · ratio

Where no Section 127 appeal is filed against the final Section 126 assessment, it attains finality and the consumer is liable to pay the assessed amount.

HC-027 holding · s.126 · ratio

A Section 126 assessment is to be made even where an offence under Section 135 has been made out (FIR/final report notwithstanding); the Special Court finally determines the civil liability, with further action under Section 154(6).

HC-014 HC-SB (Bombay, Nagpur Bench) settles

On a Section 127 appeal remanded solely on quantum, the Appellate Authority is bound by the finding that Section 126 applies and cannot re-litigate applicability; its remit is confined to the quantum of assessment.

HC-028 HC-SB (Allahabad) applies

A Section 126 assessment is appealable under Section 127 to the notified appellate authority (in U.P., the Commissioner of the Division) even when an FIR under Section 135 exists; the appellate authority cannot decline jurisdiction, and the Special Court finally determines civil liability under Section 154(6).

HC-017 HC-SB (Calcutta) affirms

A consumer who forgoes the Section 127 appeal (and its 50% pre-deposit) and lets the assessment attain finality cannot secure unqualified restoration of supply via a writ; Section 145 bars civil-court interference with Section 126/127 assessments.

HC-022 holding · s.127 · ratio

No Section 127 appeal lay because no final order of assessment was ever made; hence the writ under Article 226 is maintainable.

HC-025 HC-SB (Calcutta) applies

A consumer who lets the Section 127 appeal become time-barred cannot, absent palpable arbitrariness, obtain relief by a direct writ under Article 226.

▼ assessment-126 — 10 cases · lead **SC-001** (SC)

line of authority: **HC-021** HC·2005 → **HC-020** HC·2011 → **SC-001** SC·2013 → **HC-003** HC·2014 → **HC-010** HC·2017 → **HC-011** HC·2017 → **HC-018** HC·2017 → **HC-014** HC·2020 → **HC-024** HC·2022 → **HC-025** HC·2023

HC-021 HC-SB (Calcutta) settles

A Section 126 provisional assessment must (a) be made under Section 126 itself, not under the Board's old supply conditions, and (b) be the assessing officer's own best judgment on his personal observation; an assessment dictated by a superior's guideline is a nullity, and coerced payment on an illegal assessment is recoverable as unjust enrichment.

HC-020 HC-SB (Allahabad) settles

An assessing officer cannot make a theft assessment without first establishing a case of theft (para 8.1(b)(iv)); the best-judgment assessment must be reasoned, unbiased and rational, an oral hearing must be given, and theft cannot be inferred on mere presumption or on readings of meters not installed at the consumer's premises absent a specific enabling provision.

SC-001 holding · s.126 · ratio

A final assessment under Section 126 for 'unauthorised use of electricity' is a quasi-judicial decision by a public servant; it is not a 'consumer dispute' under Section 2(1)(e) of the Consumer Protection Act, 1986, and cannot be challenged by a consumer complaint.

HC-003 holding · s.126 · ratio

'Unauthorised use of electricity' (s.126) is the genus of which the theft acts in s.135(1) are species; theft is unauthorised use done dishonestly. A Section 126 assessment therefore has to follow in every case of unauthorised use, including theft — neither section excludes the other.

HC-010 HC-DB (Kerala) settles

Under Section 126(6) 'twice the tariff' ordinarily embraces both fixed and energy charges, and higher-tariff misuse is assessed at twice the higher tariff; but where the sole irregularity is excess load in the same premises for the same purpose (no tariff change) and the energy is already metered and paid, the penalty is confined to twice the fixed charges, absent a need to upgrade the distribution system/voltage.

HC-010 HC-DB (Kerala) affirms

Section 126 assessment is intention-neutral (no mens rea); the assessing officer's presence at inspection is not a mandatory precondition to initiating proceedings.

HC-011 holding · s.126(1) · ratio

The condition precedent to a provisional assessment under Section 126(1) is a conclusion by the Assessing Officer that the person is indulging in unauthorised use; that satisfaction cannot rest on the officer's mere 'vagaries' without a fair opportunity of hearing in defence.

HC-018 HC-SB (Orissa) affirms

A Section 126 inspection alleging unauthorised use should be conducted in the consumer's presence; and the Section 126(5) 12-month cap applies only where the period of unauthorised use is unascertainable.

HC-014 HC-SB (Bombay, Nagpur Bench) applies

Consuming electricity beyond the sanctioned contract demand, resulting in a change of tariff category, is unauthorised use under Explanation (b)(iv) to Section 126 (Seetaram Rice Mill); the assessment follows Sections 126(3)-(6), and prior payment of a contract-demand penalty is no bar to it.

HC-024 holding · s.126(2) · ratio

The provisional assessment must be supplied to the consumer under Section 126(2); in the absence of such service there should be no demand, because a statutory power must be exercised only in the manner prescribed and not otherwise.

HC-024 holding · s.126 · ratio

A decision under Section 126 must be taken strictly in accordance with the statutory provision — when a statute provides that a thing be done in a particular manner, it must be done in that manner and not in any other.

HC-025 holding · s.126 · ratio

The assessing officer is a State Government appointee (whether of the Government or the licensee) and so has an independent character, not functioning merely as an employee of the licensee — hence no unbridled power and no basis to strike down the Section.

▼ burden-proof — 5 cases · lead HC-019 (HC)

line of authority: **HC-008** HC-2006 → **HC-020** HC-2011 → **HC-019** HC-2013 → **HC-017** HC-2022 → **HC-022** HC-2022

HC-008 HC-SB (Delhi) settles

Corroboration of suspected unauthorised use / DAE by the consumer's consumption pattern (Reg. 26(ii)) is a precondition to the exercise of the assessing officer's jurisdiction; if consumption exceeds the prescribed threshold, no case can be booked.

HC-020 holding · s.126 / Reg. 8.1 · ratio

The assessing officer has no jurisdiction to make a theft assessment unless he first establishes a case of theft against the person (para 8.1(b)(iv)); merely issuing a provisional assessment order does not establish theft.

HC-020 holding · s.126 · ratio

Theft of electrical energy cannot be made out on mere presumption; it has to be established as required by para 8.1(b)(iv) of the Code.

HC-019 holding · s.135 / Reg. 15.8 · ratio

A missing/tampered seal or broken glass window is not, by itself, evidence of theft unless corroborated by the consumer's consumption pattern and other available evidence — this is the safeguard for suspected-theft cases (Clause 15.8(x)-(xv)).

HC-017 holding · s.126 · ratio

A Section 126 assessment is a civil enquiry to be decided on the standard of preponderance of probability, whereas Section 135 theft requires proof beyond reasonable doubt with mens rea; the yardsticks are distinct.

HC-022 holding · s.126 / s.135 · ratio

Sections 126 and 135 operate in separate fields and parallel proceedings may run; Section 126 is civil (preponderance of probability), Section 135 is criminal (beyond reasonable doubt) — the standards of proof differ.

HC-022 holding · s.126 / s.135 · ratio

Where a tampered/bypassed meter is the ONLY allegation and it founds both the Section 135 prosecution and the Section 126 assessment (self-same allegation), an acquittal scot-free in the criminal case means the consumer cannot be indicted for the same charge even on a preponderance of probability.

► **compounding-152** — 2 cases · lead **HC-026** (HC)

▼ **jurisdiction-145-154** — 10 cases · lead **SC-001** (SC)

line of authority: **HC-006** HC·2008 → **HC-019** HC·2013 → **SC-001** SC·2013 → **HC-016** HC·2013 → **HC-003** HC·2014 → **HC-009** HC·2016 → **HC-023** HC·2018 → **HC-027** HC·2019 → **HC-017** HC·2022 → **HC-022** HC·2022

HC-006 HC-DB-binding (Delhi) settles-explains

In an electricity-theft case, the civil court's jurisdiction to entertain a suit challenging the theft bill / civil liability is impliedly ousted by Sections 153–154 (Special Court), even where no criminal complaint is filed; Section 145's express bar is confined to Section 126/127 assessment matters. The plaint was rightly rejected, though for different reasons than the Single Judge gave.

HC-019 holding · s.127 · ratio

The Section 127 appeal lies only against a Section 126 order, not against a Section 135(1A)/Clause 15.8 theft assessment; the latter is examinable by the Special Court under Section 154(5)/(6).

HC-019 holding · s.154(5)/(6) · ratio

The remedy against a final theft assessment is before the Special Court under Section 154(5)/(6), which determines the civil liability; the writ court will not interfere.

SC-001 SC-binding settles-split

A consumer complaint challenging a Section 126 assessment or any Sections 135–140 action is not maintainable before a Consumer Forum; the statutory remedies (Section 127 appeal; Special Court under Section 153) are exclusive of the consumer route.

HC-016 HC-SB (Rajasthan) affirms

Section 145 excludes the civil court's jurisdiction over matters an assessing officer (Section 126) or appellate authority (Section 127) is empowered to determine; a court entertaining an unauthorised-abstraction suit must decide that jurisdictional bar first, and the licensee may raise it as respondent without a cross-appeal.

HC-003 holding · s.154(5),(6) · ratio

The Special Court's power under Section 154(5) to determine civil liability for theft does not preclude a Section 126 assessment; the amount 'deposited' referred to in Section 154(6) is the amount assessed under Section 126, there being no other provision for such a deposit.

HC-009 holding · s.126 / s.154(5) · ratio

Section 126 cannot be applied to assess the amount to be charged for theft of electricity; the civil liability for theft is measured under the Section 154(5) formula (twice the tariff for the twelve months preceding detection, or the exact period of theft if determined, whichever is less), subject to final adjudication by the Special Court.

HC-023 holding · s.154(6) · ratio

The amount 'deposited by the consumer' in Section 154(6) is the amount deposited under Section 126 (there being no other deposit provision for theft), so the Section 154(5) Special Court does not oust the Section 126 assessment; the

argument that only the Special Court may assess is rejected.

HC-027 holding · s.154(6) · ratio

The 'amount deposited by the consumer' in Section 154(6) is the amount deposited under Section 126 — there being no other deposit provision for theft — so Section 126 assessment and the Special Court's Section 154(5) determination coexist.

HC-017 holding · s.145 · ratio

Section 145 bars civil-court interference in respect of assessments under Sections 126 and 127; a Section 135 FIR instead leads to a Section 154 Special Court criminal action, with civil liability under Section 154(5) independent of and subject to the Section 126 deposit (Section 154(6)).

HC-022 holding · s.154(6) · ratio

The Explanation to Section 154(6) ('civil liability') refers to the liability determined by the Special Court under Section 154(5) for theft, not to the amount raised as a provisional assessment under Section 126.

► **limitation-56** — 1 cases · lead **HC-003** (HC)

▼ **mensrea-135** — 13 cases · lead **SC-001** (SC)

line of authority: **HC-020** HC·2011 → **HC-019** HC·2013 → **SC-001** SC·2013 → **HC-009** HC·2016 → **HC-010** HC·2017 → **HC-026** HC·2018 → **HC-023** HC·2018 → **HC-027** HC·2019 → **HC-014** HC·2020 → **HC-017** HC·2022 → **HC-022** HC·2022 → **HC-024** HC·2022 → **HC-025** HC·2023

HC-020 holding · s.126 / s.135 · explanatory

Section 126 assessment may be made even on inspection of records where a person is found in unauthorised use, without attracting Section 135, because Section 135 contemplates a positive act interfering with the recording of electricity supplied.

HC-019 holding · s.126 / s.135 · ratio

Sections 126 and 135 sit in different Parts (XII vs XIV), cover different fields and prescribe different procedures; theft involves mens rea, which is not necessary for unauthorised use under Section 126.

SC-001 holding · s.135 · ratio

Offences under Sections 135–140 (theft and allied acts) are triable only by a Special Court constituted under Section 153; a Consumer Forum has no jurisdiction over any action taken under Sections 135–140.

HC-009 holding · s.135 · ratio

A show-cause notice / opportunity of hearing is required only where theft is suspected (broken/tampered seals, no evidence at site — per Circular 54/2007); where the theft is 'writ large' (here a dead-stop meter with a soldered wire after breaking the counter lock), no opportunity of hearing need be given before proceeding.

HC-010 holding · s.126 · ratio

'Unauthorised use of electricity' under Section 126 covers cases of unauthorised use even without intention; the consumer's intention is not the foundation for an assessment order under Section 126 (mens rea is a Section 135 concept).

HC-026 holding · s.126 / s.135 · explanatory

Section 135 theft falls within criminal jurisprudence and mens rea is the relevant factor; Section 126 (read with the Supply Code) does not speak of criminal intent, and the assessment under it is appealable under Section 127, whereas a Section 135 assessment (Reg. 23-AA) has no statutory appeal.

HC-023 holding · s.126 / s.135 · ratio

A Section 135 criminal proceeding has no bearing on a Section 126 proceeding; even an acquittal in the criminal case for a Section 135 offence does not exonerate the consumer from Section 126 civil liability.

HC-023 holding · s.135 · explanatory

On the facts, the acquittal was not a clean acquittal but a benefit-of-doubt acquittal on technicality (delayed seizure, non-production of dump copy), reinforcing that it does not undo the Section 126 civil liability.

HC-027 holding · s.126 / s.135 · ratio

Unauthorised use of electricity (Explanation (b) to Section 126) is the genus of which the Section 135(1) acts are species; theft is unauthorised use done dishonestly, so a Section 126 assessment must follow whenever there is unauthorised use.

HC-014 holding · s.126 · ratio

Following Seetaram Rice Mill (para 35), intention is not the foundation for invoking Section 126; all that need be ascertained is whether the consumer exceeded the contract load resulting in usage beyond it.

HC-017 holding · s.126 / s.135 · ratio

An acquittal on a Section 135 theft charge (tested on proof beyond reasonable doubt) does not ipso facto exonerate the consumer from civil liability under Section 126 (tested on the more liberal preponderance of probability).

HC-022 holding · s.126 / s.135 · ratio

Where a tampered/bypassed meter is the ONLY allegation and it founds both the Section 135 prosecution and the Section 126 assessment (self-same allegation), an acquittal scot-free in the criminal case means the consumer cannot be indicted for the same charge even on a preponderance of probability.

HC-024 holding · s.126 / s.135 · ratio

The contention that an acquittal in the Section 135 criminal case extinguishes Section 126 liability is not acceptable — a Section 135 proceeding has no bearing on a Section 126 proceeding (following Orion Metal and Seetaram Rice Mill).

HC-025 holding · s.126 / s.135 · ratio

A Section 126 finding does not indict a person of theft (a criminal charge); the assessing officer merely calculates the licensee's loss, and whether theft is established is left to the Special Court's full criminal trial — so no violation of Articles 19/21.

▼ natural-justice — 14 cases · lead **HC-003** (HC)

line of authority: **HC-013** HC·2002 → **HC-021** HC·2005 → **HC-008** HC·2006 → **HC-020** HC·2011 → **HC-019** HC·2013 → **HC-003** HC·2014 → **HC-009** HC·2016 → **HC-010** HC·2017 → **HC-011** HC·2017 → **HC-018** HC·2017 → **HC-026** HC·2018 → **HC-022** HC·2022 → **HC-024** HC·2022 → **HC-025** HC·2023

HC-013 HC-DB (Patna) settles

Under a statutory tariff clause, disconnection of supply on detecting excess-load/theft may be effected without prior notice (natural justice yielding to the urgency of protecting the Board's property), but the ensuing assessment of the value of energy and compensation must be made only after a hearing.

HC-021 holding · s.126(1) · ratio

Section 126(1) requires the assessing officer to provisionally assess 'to the best of his judgment' on his own personal observation of the extent of unauthorised use; this quasi-judicial function cannot be fettered by a superior's guideline/office order — an assessment dictated by such a direction is the direction-giver's judgment, not the officer's, and is illegal.

HC-008 HC-SB (Delhi) applies

In a Section 126 unauthorised-use / DAE proceeding the show-cause notice must precisely disclose the grounds — including the consumption-pattern basis relied on — and the licensee must grant a real hearing; a demand founded on seal/glass irregularities without that disclosure or corroboration is set aside and remitted.

HC-020 holding · s.126(3) / Reg. 8.1 · ratio

The law requires an opportunity of oral hearing to the consumer before final assessment; none was given here (no date was communicated for the consumer to answer the charges in person).

HC-019 holding · s.135 / Reg. 15.8 · ratio

A missing/tampered seal or broken glass window is not, by itself, evidence of theft unless corroborated by the consumer's consumption pattern and other available evidence — this is the safeguard for suspected-theft cases (Clause 15.8(x)-(xv)).

HC-003 HC-DB-binding (Allahabad) applies

A final assessment under Section 126 passed beyond the 30-day window in Section 126(3) — here two years after the provisional notice and without a fresh hearing — is void for breach of natural justice and is set aside with a direction to

reassess after hearing objections.

HC-009 [HC-SB \(Punjab & Haryana\)](#) settles

A pre-assessment hearing in a theft case is required only where theft is merely suspected; where theft is 'writ large' on the checking report, no opportunity of hearing need be afforded before the licensee proceeds.

HC-010 [holding · s.126\(1\) · ratio](#)

The physical presence of the assessing officer at the time of inspection and detection of unauthorised use is not a mandatory precondition for initiating assessment proceedings under Section 126(1).

HC-011 [HC-DB \(Allahabad\)](#) affirms

A Section 126 assessment is subject to natural justice: the provisional assessment presupposes a lawful conclusion of unauthorised use, and a final assessment (or any coerced deposit) is invalid unless the consumer's objections are considered and a personal hearing given, per Section 126(3) and Clause 8.1 of the 2005 Supply Code.

HC-018 [holding · s.126\(1\) · ratio](#)

An inspection alleging unauthorised use under Section 126 should be conducted in the presence of the consumer (a signatory to the inspection report); the licensee's failure to show the night inspection was in the consumer's presence undermined its case.

HC-026 [holding · s.127 · ratio](#)

An appellate order rejecting a Section 127 appeal as not maintainable, passed without affording any opportunity of hearing, warrants interference and is quashed and remitted.

HC-022 [holding · s.126\(3\) · ratio](#)

It is the incumbent duty of the licensee to pass a final order of assessment within 30 days of service of the provisional assessment, even if the consumer files no objection.

HC-024 [HC-DB \(Jharkhand\)](#) settles

The Section 126(2)/(3) procedure — service of the provisional assessment, opportunity to object, and a final assessment — is mandatory (manner-prescribed rule); a demand raised without it is set aside and remitted.

HC-025 [holding · s.126\(1\) · ratio](#)

No hearing is required before a provisional assessment under Section 126(1) (which is not conclusive); the right of hearing and to file objections is given before the final order, and requiring a hearing before the provisional assessment would defeat the summary, expeditious timeline.

▼ provisional-final — 10 cases · lead **HC-003** (HC)

line of authority: **HC-013** HC·2002 → **HC-019** HC·2013 → **HC-003** HC·2014 → **HC-011** HC·2017 → **HC-023** HC·2018 → **HC-027** HC·2019 → **HC-017** HC·2022 → **HC-022** HC·2022 → **HC-024** HC·2022 → **HC-025** HC·2023

HC-013 [holding · Tariff Clause 16.9 · ratio](#)

Although natural justice is excluded at the disconnection stage, the determination of the value of energy consumed and the assessment of compensation must be made after giving the affected person an opportunity of hearing — that requirement is read into the clause even though it is silent.

HC-019 [holding · Reg. 15.8 · ratio](#)

The suspected-theft safeguards in Clause 15.8(x)-(xv) (continued supply, provisional assessment, show-cause, 75%-consumption drop) have no application to a clear theft case, which is governed by Clause 15.8(i)-(ix).

HC-019 [holding · s.126 · ratio](#)

Labelling a theft demand as a 'Section 126 provisional assessment' does not convert a theft proceeding into a Section 126 assessment where, on the date of inspection, it was treated as theft (FIR lodged) and not even as suspected theft.

HC-003 [holding · s.126\(3\) · ratio](#)

A final assessment must be passed within thirty days of the provisional order under Section 126(3); a final order passed about two years later, without a fresh opportunity of hearing, violates natural justice and cannot be sustained.

HC-011 holding · s.126(3) · ratio

A final assessment made without considering the consumer's objections and without a personal hearing (as required by Section 126(3) and Clause 8.1(b)(iii) of the 2005 Code) is de hors the statutory provision and cannot stand.

HC-011 holding · s.126 · ratio

Absent a lawful final assessment made after considering objections and hearing, the consumer cannot be compelled to deposit the provisional amount.

HC-023 holding · s.127 · ratio

Where no Section 127 appeal is filed against the final Section 126 assessment, it attains finality and the consumer is liable to pay the assessed amount.

HC-027 holding · Reg. 8.1 (UP Code) · ratio

The U.P. Electricity Supply Code, 2005 (Clause 8.1) requires a provisional assessment bill and final assessment even in Section 135 theft cases, confirming that assessment for theft is made under Section 126.

HC-017 holding · s.127 · ratio

A consumer who bypasses the Section 127 appeal (which requires a 50% pre-deposit) cannot obtain from the writ court, indirectly, the restoration he could not get from the appellate forum; there is no unqualified restoration without complying with the final assessment.

HC-022 HC-SB (Calcutta) settles

The licensee has a duty to pass a final Section 126 assessment within 30 days of serving the provisional order (even absent objection); failing that, the provisional order spends its force after 30 days and any amount paid on it is refundable.

HC-024 holding · s.126(2) · ratio

The provisional assessment must be supplied to the consumer under Section 126(2); in the absence of such service there should be no demand, because a statutory power must be exercised only in the manner prescribed and not otherwise.

HC-024 holding · s.126(3) · ratio

A demand issued without considering the consumer's objection and without making a final assessment requires interference and must be remitted for a fresh decision strictly per Section 126.

HC-025 holding · s.126(1) · ratio

No hearing is required before a provisional assessment under Section 126(1) (which is not conclusive); the right of hearing and to file objections is given before the final order, and requiring a hearing before the provisional assessment would defeat the summary, expeditious timeline.

3 · Citation backbone — authorities the corpus repeatedly rests on (≥2 records)

freq	authority	treatment	cited by
8×	Executive Engineer, Southern Electricity Supply Co. of Orissa Ltd. (SOUTHCO) v. Sri Seetaram Rice Mill (2012) 2 SCC 108 · Supreme Court (3-Judge)	{'followed': 7, 'referred': 1}	HC-019 followed, HC-016 referred, HC-009 followed, HC-010 followed, HC-018 followed, HC-023 followed, HC-014 followed, HC-017 followed
5×	Executive Engineer (SOUTHCO) v. Sri Seetaram Rice Mill (2012) 2 SCC 108 · Supreme Court (3-Judge)	{'referred': 3, 'followed': 2}	HC-026 referred, HC-028 referred, HC-022 referred, HC-024 followed, HC-025 followed
3×	Ashok Kumar v. State of U.P. 2008 (6) ADJ 669 · Allahabad High Court (DB)	{'followed': 3}	HC-003 followed, HC-011 followed, HC-027 followed
2×	M/s Radha Krishna Cold Storage v. State of U.P. WP No. 19574 of 2008 · Allahabad High Court (DB)	{'referred': 1, 'followed': 1}	HC-003 referred, HC-027 followed
2×	Tinsukhia Electricity Supply Co. Ltd. v. State of Assam (1989) 3 SCC 709 · Supreme Court (Constitution Bench)	{'followed': 2}	HC-003 followed, HC-023 followed

freq	authority	treatment	cited by
2×	Sandeep Kesarwani v. State of U.P. Writ-C No. 69101 of 2013 (Allahabad DB, 11.02.2014) · Allahabad High Court (DB)	{'followed': 2}	HC-028 followed, HC-022 followed
2×	WBSEDCL v. Orion Metal Pvt. Ltd. (2020) 18 SCC 588 · Supreme Court	{'followed': 2}	HC-022 followed, HC-024 followed